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Provision of December 12, 2024

Register of provisions

n. 775 of December 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, president, Prof.

Ginevra Cerrina Feroni, vice president, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data

(legislative decree June 30, 2003, n. 196), as

amended by legislative decree August 10, 2018 n. 101, containing

provisions for the adaptation of the national

legal system to the aforementioned Regulation (hereinafter

"Code");

HAVING SEEN the documentation on file;

HAVING SEEN the observations made by the secretary

general pursuant to Article 15 of the Guarantor's

Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated August 18, 2023, Mr. XX

complained about receiving numerous unwanted emails

and some SMS from the service offered by the website

www.docenti.it of Start To Fly S.r.l. (hereinafter, Start To Fly or the Company). The complainant specified that he had

subscribed to the newsletter in 2019 but had not been able to stop

receiving messages; in the complaint, he stated that he had

repeatedly followed the unsubscription procedure

on the website www.docenti.it in March 2020 without

success. Therefore, by email on April 6 and 7, 2020, he requested

cancellation from the service. On April 8, 2020, the data controller

is reported to have responded assuring the cancellation

from the mailing list. However, the complainant continued to

receive unwanted emails and SMS periodically

that could not be blocked (an email dated June 2,

2020, an email dated June 27, 2023, and an SMS

allegedly received on August 17, 2023, are attached to the complaint).

In a note dated October 20, 2023, the Company, in response

to the request for information from the Office, first

clarified that Mr. XX had requested unsubscription from the mailing list, not

cancellation; therefore, it stated that "Mr. XX was unsubscribed from the newsletter already in 2020," adding that he would not receive further communications for the next three years, except for the last messages due to a material error that resulted in the complainant being reinserted into the mailing list. The Company also added that the messages, although sent in error, would still have contained content of interest to the complainant and for this reason could be justified by invoking the legal basis of the legitimate interest of the controller and could be assimilated to the case referred to in Article 130, paragraph 4, of the Code (so-called soft spam). The response note from Start To Fly, which, contrary to what was requested, had not been communicated to the complainant, was forwarded to him by the Office. On February 25, 2024, Mr. XX replied stating that, contrary to what the Company claimed, the receipt of unwanted communications - received both via email and SMS - had not at all stopped between 2020 and 2023; in this regard, he produced copies of the communications received, specifying that it was a sample extraction of the entire volume of messages received. In particular, the note of February 25, 2024, includes emails received on the following dates: September 15, 2021, August 17, 2022, September 14, 2022, December 19, 2022, December 27, 2022, January 5, 2023, January 9, 2023, January 23, 2023, January 25, 2023, February 27, 2023, June 23, 2023, September 5, 2023, October 2, 2023; along with the same note, SMS from August 17, 2021, and August 16, 2022, were produced. In the same note, the complainant specified that he had repeatedly attempted to unsubscribe by clicking on the appropriate link at the bottom of the emails without ever achieving any effect (see point 3 of the statement: "Furthermore, I wonder – ... – what is the purpose of the unsubscribe button from the newsletter at the end of each individual email. I, personally, have pressed that button multiple times as they were communications that were not of my interest").

2. THE CONTESTATION OF VIOLATIONS

The Office contested the violations identified in the initiation of the procedure dated March 12, 2024, prot. n. 30740 /24, notified by registered mail. Hereby fully recalling the reasons expressed in the aforementioned act, Start to Fly was contested for the violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code for having sent numerous promotional emails and SMS to the complainant despite his repeated requests over the years not to be contacted anymore.

Furthermore, it was also deemed that the violation of Article 17 of the Regulation was integrated for failing to comply with the request made by the complainant to be removed from the mailing list.

3. THE DEFENSE OF THE COMPANY

In the defense memorandum dated April 19, 2024, the Company clarified that it is a small business,

"where the legal representative also handles the more material tasks." In the case of XX, in fact, it would have been precisely the

legal representative to make a mistake because "in the system transition from the software initially used for mailing lists to the one used subsequently, the legal representative made a material error by reactivating the account of the current claimant." In this regard, the Company attached a letter of apology sent to XX in which it stated that it had taken steps to delete his data.

Regarding the contested lack of response to the deletion request, Start to Fly stated that:

- a) the claimant's request should be qualified as a right of opposition and not as a right of deletion;
- b) the communications sent, even if by mistake, can be said to be supported by the legitimate interest of the data controller;
- c) any further activity of sending newsletters has been suspended pending the completion of the necessary checks.

On May 21, 2024, a hearing was held in which the legal representative of the Company stated that:

- a) the claimant did not click the unsubscribe button but only called the office, which is why his request was not handled promptly; he would have been manually unsubscribed on July 22, 2020;
- b) on August 3, 2022, a platform change was made, and the legal representative would have uploaded an old mailing list, stored on his PC, in which the data of Mr. XX were still present; in October 2023, the claimant would have been manually unsubscribed from the list;
- c) from the checks carried out, there would be no email sent to Mr. XX between 2020 and 2022 since other sends are present only after August 3, 2022;
- d) there would be no explanation for the email received by the claimant in 2021.

4. LEGAL ASSESSMENTS

4.1 Sending promotional communications without consent

From the documentation collected in the records, it appears that the Company sent numerous emails and some SMS whose content, having the ultimate aim of promoting the sale of a service, had promotional purposes. Despite the opposition expressed by the claimant and the numerous attempts to unsubscribe that he claimed to have made through the link at the bottom of the emails, the sending of communications, via email and SMS, continued for years.

Regarding the legal basis applicable to the processing in question, it is noted that the sending of promotional communications via electronic communication tools is governed by Article 130 of the Code, in implementation of Article 13 of Directive 2002/58/EC, which constitutes a *lex specialis* where the only legal basis allowed is the consent of the user, except for certain cases, strictly described, of derogation. One of these derogations is contained in the provision of Article 130, paragraph 4 of the Code, which allows the sending of promotional communications exclusively via email. In this case, the data controller may not require the consent of the data subject if it concerns services similar to those being sold and if the data subject, adequately informed, does not refuse such use initially or on subsequent communications. On this specific aspect, the Authority expressed itself, most recently, with the provision of January 11, 2023 (in www.garanteprivacy.it, doc web 9861941).

It follows that the indication of legitimate interest as a legal basis cannot be accepted in this case, nor can the derogation provided for in Article 130, paragraph 4 of the Code be invoked, which operates only if certain requirements are met that are not present in this case: the communications were, as stated, also sent via SMS and despite the data subject having repeatedly opposed such receipt.

The fact that the Company believes that the communications sent are of interest to the claimant is of

no relevance since, as stated, in the absence of consent, they could not be sent, and in any case, the claimant has amply demonstrated that he has no interest in receiving such communications; it was indeed necessary, ultimately, to turn to the Authority to obtain definitive deletion.

All this premised, as there is no proven existence of any legal basis capable of justifying the sending of communications to the claimant after the revocation of consent, it is deemed that there has been a violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code.

4.2 Failure to follow up on the deletion request

The right of opposition referred to in Article 21 of the Regulation, invoked by the Company, does not apply in this case since the processing in question - as clarified above - admits as the only legal basis the consent of the data subject. Therefore, in this legal construction, the denial of processing manifests as a revocation of consent and not as opposition under Article 21 of the Regulation. This right of revocation has been exercised multiple times by the data subject, who stated that he had made numerous attempts through the available channels; in fact, in the complaint, he stated that "in March 2020 I executed the unsubscribe procedure from their site, but I continued to receive their communications. I therefore executed this procedure multiple times"; in the note of February 25, 2024, sent in response to the statements of the data controller, the claimant added "... I wonder... what is the purpose of the unsubscribe button from the newsletter at the end of each individual email. I, personally, have pressed that button multiple times as they were communications that were not of my interest."

"interest".

Such numerous unsuccessful attempts - to which the requests via email to the data controller were recently added - have primarily undermined the legal basis (the consent of the data subject) on which the processing was initially based, constituting the violation referred to in the previous point.

Subsequently, the complainant, unable to revoke consent, also requested removal from the mailing list by writing directly to the data controller on April 6, 2020 (as clearly evidenced by Attachment 1 to the complaint of August 18, 2023): "Can you please remove me from the mailing list permanently?!". He therefore undoubtedly exercised the right to erasure as well. This exercise of the right, moreover, would be considered superfluous in this case since, in the event of revocation of consent, the data controller has no reason to retain the data in the mailing list. It follows that, even in the absence of an express request from the data subject, since the processing has been interrupted, the data controller should have proceeded to erase the data from all locations where retention is no longer necessary. In fact, if the complainant's data had been correctly deleted, it would not have been possible to verify the erroneous upload - declared by the data controller - which would have led to the resumption of mailing activities several years after the request. Not to mention that no action appears to have been taken regarding the sending of promotional SMS, nor has any justification been provided in this regard. For these reasons, the violation of Article 17 of the Regulation is deemed to be established.

5. CONCLUSIONS

Based on the above, the responsibility of Start to Fly for the following violations is deemed established:

- a) Article 6, paragraph 1, letter a) of the Regulation and Article 130, paragraph 2 of the Code, for sending unwanted promotional communications in the absence of consent from the data subject and in the absence of any other legal basis;
- b) Article 17 of the Regulation, for the failure to delete the data of the data subject;

Furthermore, it is worth making some considerations regarding the conduct of the data controller, who, in the case described, provided inconsistent, contradictory, and undocumented statements. It is noted that the data controller, in an email dated April 8, 2020, directed to the data subject, confirmed the deletion: "You are no longer subscribed. The emails you are still receiving follow an automatic dispatch. You will see that shortly you will no longer receive emails." However, from the documentation produced by the complainant, it is evident that communications never ceased, proving that the data subject had not been removed from the mailing list. Subsequently, the same data controller, during the hearing, stated that Mr. XX was manually unsubscribed only on July 22, 2020 (three months after the declared deletion). Nevertheless, the complainant's data would still have been present in an old

mailing list stored on the legal representative's computer and was manually deleted again in October 2023. No justification has been provided regarding the sending of SMS, nor has the data controller been able to justify the email received by the complainant during the period between the alleged deletion in July 2020 and the accidental resumption of sending in 2023, considering that the complainant attached an email received in 2021 but pointed out that the numerous copies of emails presented in the records constituted only a part of those received overall over the years. Therefore, having established the unlawfulness of the conduct of Start to Fly concerning the processing examined,

it is necessary to:

- impose on Start to Fly, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of any processing for promotional purposes of personal data present in its lists where it is unable to document the presence of suitable consent expressed by the data subjects; this is because the Company, in its defense phase, stated that it had based this processing on the legal basis of legitimate interest and had only temporarily suspended the sending of promotional messages pending a review of its technical and organizational procedures;
- adopt an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Start to Fly of the administrative pecuniary sanction provided for by Article 58, paragraph 2, letter i) and Article 83, paragraphs 3 and 5, of the Regulation.

By virtue of what is provided for by Article 154-bis, paragraph 3 of the Code, the publication of this provision on the Authority's website is proceeding (see also Article 37 of the internal regulation of the Guarantor No. 1/2019). It is finally noted that the conditions referred to in Article 17 of the Guarantor's Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met for the annotation of the violations identified here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

6. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code are found to be violated in relation to connected processing carried out by Start to Fly, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or to..." related treatments, a data controller

violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be assessed when quantifying the relevant amount.

In compliance with this provision, hypothesizing, based on the information available in the last financial statement (registered as of December 31, 2023), the occurrence of the first hypothesis provided for by the aforementioned

Article 83, paragraph 5 and thus quantifying the maximum penalty applicable at 20 million euros, the following aggravating circumstances must be considered:

1. the duration and severity of the violation, given that the complainant has tried for years to obtain the cessation of the sending of unwanted messages by the data controller without satisfaction and therefore had to request the intervention of the Authority (Article 83, paragraph 2, letter a), of the Regulation);
2. the severely negligent nature of the violation, given that the Company has demonstrated serious negligence in the processing of personal data (Article 83, paragraph 2, letter b), of the Regulation);
3. the measures adopted by the data controller, which have proven to be completely insufficient to ensure respect for the rights of the data subject, failing to satisfy in any way their requests; it is noted that the complainant has stated that they attempted multiple times to unsubscribe, both through the website and through the unsubscribe button at the bottom of the emails, and finally by writing twice by email to the controller without ever obtaining the deletion of their data; in addition, there is the further justification of the data controller - expressed only during the hearing - regarding the fact that the complainant would have contacted the controller's office by phone to request deletion but, not having an adequate structure to receive such requests, it would not have been possible even on that occasion to acknowledge the will of Mr. XX (Article 83, paragraph 2, letter c), of the Regulation);
4. the degree of responsibility of the controller, taking into account the absence of adequate measures to ensure the correctness of the processing carried out for promotional purposes and the respect of the basic rights of the data subject (Article 83, paragraph 2, letter d), of the Regulation);
5. the degree of cooperation with the Supervisory Authority, considering that the Company has produced contradictory and undocumented justifications (Article 83, paragraph 2, letter f), of the Regulation).

As mitigating factors, it is deemed appropriate to take into account:

1. the number of subjects involved since, as evidenced in the documents, the conduct would have concerned only the complainant (Article 83, paragraph 2, letter a) of the Regulation);
2. the absence of previous relevant violations committed by the data controller (Article 83, paragraph 2, letter e), of the Regulation);
3. the categories of data affected by the violation, as it only involved common data (Article 83, paragraph 2, letter g), of the Regulation).

In a comprehensive balancing between the rights of the data subjects and the freedom of enterprise, it is deemed necessary to prudently evaluate the aforementioned criteria for the purpose of determining the amount of the administrative monetary sanctions provided by the Regulation, also in order to limit the economic impact

of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - an administrative sanction of payment of an amount of 10,000.00 euros (ten thousand/00) should be applied to Start To Fly, equivalent to 0.05% of the maximum penalty of 20 million euros. The maximum penalty is identified with reference to the provisions of Article 83, paragraph 5, of the Regulation, considering that 4% of Start To Fly's turnover, based on the data reported in the last financial statement, is less than 20 million euros.

In this context, it is also deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the internal regulation of the Authority No. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the risk elements for the rights and freedoms of the data subjects that have not yet been mitigated by the controller during the investigation concerning the procedure in question.

ALL OF THE ABOVE, THE AUTHORITY pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the processing described in the terms of the reasoning carried out by Start To Fly S.r.l., based in Serravalle (Republic of San Marino), Strada Torinia, 10, unlawful; consequently:

a) pursuant to Article 58, paragraph 2, letter f), imposes on Start To Fly S.r.l. the prohibition of any processing for promotional purposes of personal data present in its lists where it is unable to document the presence of appropriate consent.

issued by the interested parties;

b) pursuant to Article 157 of the Code, orders Start To Fly to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, to Start to Fly S.r.l., represented by its legal representative, to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

a) pursuant to Articles 154-bis of the Code and 37 of the internal regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website;

b) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the internal regulation of the Authority No. 1/2019, the publication of the injunction order on the Authority's website;
c) pursuant to Article 17 of the internal regulation of the Authority No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the interested party, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, December 12, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi